

26STCP01822 26STCP01822

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-18

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Case Number: 26STCP01822 Hearing Date: September 18, 2026 Dept: 512

HEARING

DATE: Fri., September 18, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: In

re Petition of LNV Assistance, LLC PET.

FILED: 05-12-26

CASE NUMBER: 26STCP01822

AM. PET. FILED: 06-24-26

NOTICE:

OK

PROCEEDINGS: FIRST AMENDED PETITION FOR ORDER APPROVING TRANSFER OF
STRUCTURED SETTLEMENT PAYMENT RIGHTS PURSUANT TO CALIFORNIA INSURANCE CODE
SECTION 10134 ET SEQ.

MOVING PARTY: Petitioner LVNV Assistance,
LLC

RESP. PARTY: None

AMENDED

PETITION FOR ORDER APPROVING TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

(Cal. Ins. Code, § 10134, et seq.)

TENTATIVE RULING:

Petitioner LVNV

Assistance, LLC's Amended Motion for Order Approving Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq. is GRANTED.

Moving party is
ordered to give notice.

SERVICE:

☒ Proof of Service Timely
Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§
1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 16, 2026 ☐ Late ☒ None

REPLY: None
filed as of September 16, 2026 ☐
Late ☒ None

ANALYSIS:

I.

Background

On May 12, 2026,
Petitioner LVNV Assistance, LLC ("Petitioner") filed a Verified Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq. (the "Petition").

On June 24,
2026, Petitioner filed the instant Amended Petition and proof of service on the interested parties to the action.

On July 22, 2026, the Court, in pertinent part, set the First Amended Petition for hearing on August 26, 2026. (7/22/26 Order.) The Court ordered Petitioner to give notice of ruling. (7/22/26 Order.)

On August 25, 2026, Petitioner filed and served Notice of Hearing as well as the Amended Petition.

On August 26, 2026, the Court held that “[t]he moving party has continued the hearing to September 18, 2026 at 9:00 a.m. in Department 512.” (8/26/26 Order.)

No Opposition to the Amended Petition has been filed.

II. Legal Standard

“The California Legislature has adopted the Structured Settlement Protection Act (SSPA) (§ 10134 et seq.) to protect structured settlement payees from exploitation by factoring companies.” (RSL Funding, LLC v. Alford (2015) 239 Cal.App.4th 741, 745.)

“The court-approval process requires the factoring company to file a petition in the county in which the transferor resides for approval of the transfer, attaching copies of the petition, the transfer agreement, the disclosure form, the annuity contract, any qualified assignment agreement and the structured settlement agreement, a list of the names and ages of the transferor’s dependents, notice of the court hearing date, and notice of a right to respond.” (321 Henderson Receivables Origination LLC v. Sioteco (2009) 173 Cal.App.4th 1059, 1066 [citing Ins. Code, §10139.5(c)].)

“The California act...governing transfers of structured settlement payment rights defines a “[s]tructured settlement agreement” [as] an arrangement for periodic payment of damages established by settlement or judgment in resolution of a tort claim in which the payment of the judgment or award is paid in whole, or

in part, in periodic tax-free payments rather than a lump-sum payment.” (Matthews v. Liberty Assignment Corp. (2016) 247 Cal.App.4th 71, 78.)

“Annuity issuers and structured settlement obligors are defined as ‘interested parties’ under the SSPA (§ 10134, subd. (g)), and as such, are entitled to notice of petitions to authorize transfer of payments under a structured settlement agreement.” (RSL Funding, LLC, supra, 239 Cal.App.4th at p. 745.)

Insurance

Code §10137 provides: “A transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met: (a) [t]he transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents [; and] (b) [t]he transfer complies with the requirements of this article, will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5.” (Ins. Code, § 10137.) The transfer agreement is effective only upon approval in a final court order. (Ins. Code, § 10139.5(a).)

Insurance Code §10139.5(a)
requires the court to make the following findings:

The transfer is in the best
interest of the payee, taking into account the welfare and
support of the payee’s dependents.

The payee has been advised
in writing by the transferee to seek independent professional
advice regarding the transfer and has either received that
advice or knowingly waived, in writing, the opportunity to receive the
advice.

The transferee
has complied with the notification requirements pursuant
to paragraph (2) of subdivision (f), the transferee has provided the
payee with a disclosure form that complies with Section 10136,
and the transfer agreement complies with Sections 10136 and
10138.

The transfer does not
contravene any applicable statute or the order of any court or other
government authority.

The payee understands the
terms of the transfer agreement, including the terms set forth
in the disclosure statement required by Section 10136.

The payee understands and
does not wish to exercise the payee's right to cancel the transfer
agreement.

(Ins. Code, § 10139.5(a).)

In addition, pursuant
to Insurance Code section 10139.5(c):

Every petition for approval of a
transfer of structured settlement payment rights, except as provided in
subdivision (d), shall include, to the extent known after the transferee has
made reasonable inquiry with the payee, all of the following:

The payee's name, address,
and age.

The payee's marital status,
and, if married or separated, the name of the payee's
spouse.

The names, ages, and place
or places of residence of the payee's minor children or other dependents,
if any.

The amounts and sources of
the payee's monthly income and financial resources and, if presently
married, the amounts and sources of the monthly income and financial
resources of the payee's spouse.

Whether the payee is

currently obligated under any child support or spousal support order, and, if so, the names, addresses, and telephone numbers of any individual, entity, or agency that is receiving child or spousal support from the payee under that order or that has jurisdiction over the order or the payments in question.

Information regarding previous transfers

or attempted transfers, as described in paragraph (11), (12), or (13) of subdivision (b). The transferee or payee may choose to provide this information by providing copies of pleadings, transaction documents, or orders involving any previous attempted or completed transfer or by providing the court a summary of available information regarding any previous transfer or attempted transfer, such as the date of the transfer or attempted transfer, the payments transferred or attempted to be transferred by the payee in the earlier transaction, the amount of money received by the payee in connection with the previous transaction, and generally the payee's reasons for pursuing or completing a previous transaction. The transferee's inability to provide the information required by this paragraph shall not preclude the court from approving the proposed transfer, if the court determines that the information is not available to the transferee after the transferee has made a reasonable effort to secure the information, including making an inquiry with the payee.

(Ins. Code §
10139.5(c).)

III.

Discussion

The Payee Salvador Cossio Jr. ("Payee")'s declaration states Payee agrees to transfer the following payments to Petitioner: 120 monthly payments each in the amount of \$1,250.00 starting on 7/4/2026 and continuing through 6/4/2036. (First Amended Petition, Payee Decl., ¶ 8, Exh. A.) The net amount paid to Payee would be \$97,000.00. (First Amended Petition, Payee Decl., ¶ 9, Exh. A.) If approved, the Payee – who is 30 years old, not married, lives in California, has no dependents, is not currently employed, and has no court-ordered child support obligations – intends to use the money to purchase a vehicle for \$30,000.00; pay off a Chase credit card for \$30,000; and use \$37,000 to remodel the Payee's home. (First

Amended Petition, Payee Decl., ¶¶ 1-9.)

Further, the Payee declares that the underlying settlement was regarding a personal injury suit and was settled by Payee's guardian ad litem in 2018. (First Amended Petition, Payee Decl., ¶ 6.) The settlement provided that Payee would be entitled to 300 monthly payments of \$1,250, starting on February 4, 2021, and continuing through January 4, 2046, followed by a series of lump sum payments. (First Amended Petition, Payee Decl., ¶ 6.) The Payee states the "original settlement was intended as compensation for a personal injury; [Payee has] no treatment necessary for any physical injuries and as such [Payee has] no continuing need to provide for future medical expenses. To the best of [Payee's] knowledge, the future payments were not intended to pay for [Payee's] future living expenses." (First Amended Petition, Payee Decl., ¶ 6.)

Also, the transferee has provided the payee with a disclosure form that complies with Section 10136, and the transfer agreement complies with Sections 10136 and 10138. (Amended Pet., Exh. 4.)

Finally, Petitioner filed and served the First Amended Petition and amended notice of hearing by FedEx at least 20 days prior to the instant hearing date. (Ins. Code, §§ 1039.5, subd. (f)(2) ["Not less than 20 days prior to the scheduled hearing on any petition for approval of a transfer of structured settlement payment rights under this article, the transferee shall file with the court and serve on all interested parties a notice of the proposed transfer and the petition for its authorization"], 1039.2 ["Any notice required by this article shall be deemed to have been given if addressed to the recipient's last known address and deposited, first class postage paid, in the United States mail not less than five calendar days prior to the date on which notice is required"].)

Thus, the First Amended Petition is GRANTED.

IV.

Conclusion & Order

Based on the foregoing, Petitioner LVNV Assistance, LLC's Amended Motion for Order Approving Transfer of Structured Settlement Payment Rights Pursuant to California

Insurance Code section 10134 et seq. is GRANTED.

Moving party is
ordered to give notice.